

**IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)**

Case No:

In the matter between:

WILBUR WILLIAM MATTHEE

(Identity Number: 8909035151087)

Applicant

and

BRUNO FERNANDES (Lead Independent Director)

First Respondent

DR NKATEKO MUNISI (Chairperson: Social and Ethics Committee)

Second Respondent

MS ALICE LE ROUX (Chairperson: Audit and Risk Committee)

Third Respondent

MR GERALD VAN WYK (Chief Executive Officer)

Fourth Respondent

LSM MPUMLWANA (Group Company Secretary)

Fifth Respondent

AFROCENTRIC INVESTMENT CORPORATION LIMITED (Registration

No. 1988/000570/06, JSE: ACT)

Sixth Respondent

FOUNDING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE,

do hereby make oath and state that:

1. INTRODUCTION

- 1.1 I am an adult male and the Applicant in this matter. The facts contained herein are, unless otherwise stated, within my personal knowledge and are true and correct.
- 1.2 This is an application in terms of Section 162 of the Companies Act 71 of 2008 (“the Act”) for an order declaring the Respondent directors delinquent, alternatively placing them under probation, together with a primary declaratory finding under Section 60(3) of the Employment Equity Act 55 of 1998 (“the EEA”).
- 1.3 This application arises from the Respondents’ failure to act upon a formally escalated Priority 1 (P1) Material Risk Report delivered on 9 December 2025, which placed each named Respondent on express individual notice of ongoing discrimination, victimisation, an unlawful payroll deduction, and imminent regulatory exposure — including explicit notification of personal director liability under Section 60 of the EEA.

2. PROCEDURAL HISTORY AND ENROLMENT ON THE ORDINARY ROLL

- 2.1 This application was initially initiated under Case No: 2026-066952 on an urgent basis.
- 2.2 To strip the matter of any procedural debate regarding urgency, and to ensure that the substantive merits of this corporate governance audit are heard dispassionately, the Applicant has elected to completely bypass the urgent court track.
- 2.3 Accordingly, the Applicant brings this application for enrolment on the Ordinary Opposed Motion Roll under a fresh case number to ensure a full, orderly ventilation of the facts.

- 2.4 For the avoidance of doubt, the relief sought herein is confined strictly to objective statutory compliance tracking under Section 162 of the Companies Act and Section 60 of the EEA. All prior claims or references regarding personal financial hardships, workplace grievances, or consequential damages have been entirely abandoned by the Applicant.
- 2.5 This application stands as a clean, standalone corporate governance enforcement action. There is no risk of lis pendens or overlapping litigation; this file represents the sole, definitive high court action through which the Applicant seeks ventilation on the normal roll.

3. APPLICANT'S STANDING AND ADEQUATE INTEREST

- 3.1 I am a shareholder of AfroCentric Investment Corporation Limited, Registration Number 1988/000570/06, a public company listed on the Johannesburg Stock Exchange (JSE: ACT) ("the Company"). My shareholding is documented in Annexure "A" hereto.
- 3.2 As a shareholder, I am entitled to bring this application in terms of Section 162(2)(a) of the Act. My interest extends to ensuring that the Company is managed in accordance with applicable legal and governance standards, which directly affects the value and integrity of my shareholding.
- 3.3 The Respondents' conduct, as set out below, directly affects the Company's governance, risk exposure, and compliance posture, thereby affecting my rights and interests as a shareholder. Adequate interest is established on the following grounds:
- 3.3.1 Adequate interest under Section 162(4) encompasses the governance, compliance, and regulatory exposure of the Company as it affects all shareholders. The Supreme Court of Appeal has confirmed that Section 162 is a remedy designed to

protect the company, its shareholders, and the public from the consequences of delinquent directorship — interests that transcend the financial value of any individual shareholding;

- 3.3.2 The Respondents' failure to act has exposed the Company to a potential B-BBEE fine of approximately R580,000,000 (10% of annual turnover) under the B-BBEE Act, an active B-BBEE Commission investigation (Case No. 5/02/2026), and this High Court delinquency application. These are material risks to the Company's value, reputation, and regulatory standing that affect every shareholder;
- 3.3.3 The Applicant is the person who suffered the direct harm flowing from the Respondents' delinquency, escalated that harm formally to the board, and was met with institutional silence and active suppression. The direct causal link between the Respondents' delinquency and the documented harm constitutes an adequate and compelling interest; and
- 3.3.4 The application is brought in good faith in the interests of the Company, its shareholders, and the integrity of listed company governance.

4. THE RESPONDENTS

- 4.1 The Respondents are directors and officers of AfroCentric Investment Corporation Limited, cited in their respective capacities as set out in the caption above.
 - 4.2 At all material times, the Respondents owed fiduciary duties in terms of the Companies Act, including duties of care, skill, diligence, and good faith.
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**5. THE PRIORITY 1 MATERIAL RISK REPORT — THE
ULTIMATE BREACH**

- 5.1 On 9 December 2025, I caused a Priority 1 Material Risk Report (“the P1 Report”) to be delivered to the First, Second, Third and Fifth Respondents in their capacities as board-level oversight structures of the Sixth Respondent. A true copy of the P1 Report is annexed hereto marked “Annexure A”.
- 5.2 The P1 Report documented, with 38 evidentiary attachments, the following EEA-relevant conduct:
- 5.2.1 Discrimination on the ground of gender identity;
 - 5.2.2 Victimisation of a complainant;
 - 5.2.3 An unlawful payroll deduction of R14,811.77 (40.47% of normal earnings) effected without consent, in contravention of Section 34(2) of the Basic Conditions of Employment Act 75 of 1997 (which caps deductions at 25%); and
 - 5.2.4 Thirty (30) days of institutional silence on formal grievances.
- 5.3 Critically, at Section 4A of the P1 Report, under the heading “Legal and Regulatory Risks,” the document stated with precision: “Personal liability for directors under Section 60 of EEA.” The individual Respondents were not merely placed on notice of the underlying conduct — they were placed on notice of the specific statutory mechanism that would render them personally liable if they failed to act.
- 5.4 The P1 Report constituted formal notification in terms of Section 60(1) of the EEA. Upon receipt, a statutory duty under Section 60(2) arose: the employer — and by delegation, each director and officer who received the report — was obliged to consult all relevant parties and take the necessary steps to eliminate the alleged conduct and achieve EEA compliance.
- 5.5 The Respondents’ response to the P1 Report was as follows:

- 5.5.1 The First Respondent (Bruno Fernandes, Lead Independent Director) — no response;
 - 5.5.2 The Second Respondent (Dr Nkateko Munisi, Chairperson: Social and Ethics Committee) — no response, notwithstanding that the P1 Report was addressed directly to him in his capacity as Chair of the committee mandated to monitor EEA compliance;
 - 5.5.3 The Third Respondent (Ms Alice Le Roux, Chairperson: Audit and Risk Committee) — no response, notwithstanding that the P1 Report was copied to her in her capacity as Chair of the committee responsible for overseeing material legal and reputational risk;
 - 5.5.4 The Fourth Respondent (Mr Gerald Van Wyk, CEO) — received the P1 Report and failed to act; and
 - 5.5.5 The Fifth Respondent (LSM Mpumlwana, Group Company Secretary) — received the P1 Report and took no steps to ensure board-level engagement or compliance.
- 5.6 Instead of acting, the Respondents' institutional response was to:
- 5.6.1 File a sworn CCMA affidavit attacking the Applicant's character the day after receipt of the P1 Report (10 December 2025); and
 - 5.6.2 Actively suppress further board-level escalations — on 18 December 2025, the Sixth Respondent's Chief Risk Officer instructed the Applicant in writing to cease communicating with the directors (a copy of that email is incorporated in Annexure A).
- 5.7 No substantive response or corrective action was taken by any of the individual Respondents across the period from 9 December 2025 to the date of filing this application.
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6. SECTION 60 EEA — DEEMED CONTRAVENTION

- 6.1 Section 60(3) of the EEA provides that where an employer fails to take the necessary steps required by Section 60(2), the employer is deemed to have contravened the relevant provision of the Act. The failure of each named Respondent to take any step — investigative, corrective, or interim — in response to a formal Priority 1 risk escalation triggers this deeming provision. The Sixth Respondent, and by extension the individual Respondents in their directorial and officer capacities, are deemed to have contravened the EEA.
- 6.2 Section 60(4) of the EEA places the burden on the employer to prove it did all that was reasonably practicable to ensure compliance. The Respondents cannot discharge this burden. Their documented response was silence, active deflection, and suppression.
- 6.3 The personal liability that flows from Section 60 read with the individual Respondents' documented receipt of the P1 Report, their individual inaction, and their active participation in suppression, is not a matter of inference. It is a statutory consequence. The individual Respondents were warned of it in the very document that triggered their duty. They chose silence. Section 60(3) has converted that silence into a deemed contravention.
- 6.4 That deemed contravention, committed by directors in the management of the company's affairs, constitutes gross negligence and wilful misconduct within the meaning of Section 162(5)(c) and (d) of the Act.

7. REGULATORY AND FINANCIAL RISK EXPOSURE

- 7.1 The matters escalated in the P1 Report were not limited to an isolated payroll issue but gave rise to broader governance and regulatory risks, of which the Respondents were formally notified. These included:

- 7.1.1 Potential regulatory non-compliance and misrepresentation under the Broad-Based Black Economic Empowerment Act 53 of 2003, arising from the systematic suppression of the Applicant's specialist designation for scorecard purposes while his NQF Level 8 qualifications were utilised for Skills Development and Management Control indicators (B-BBEE fronting);
 - 7.1.2 Exposure to statutory penalties, including fines calculated as a percentage of annual turnover — a maximum fine of approximately R580,000,000 (10% of annual turnover) under the B-BBEE Act; and
 - 7.1.3 Foreseeable litigation risk arising from unresolved unlawful conduct.
- 7.2 The Respondents were placed on notice of these risks through the P1 Report. Notwithstanding the seriousness of these risks, the Respondents failed to take reasonable steps to investigate or mitigate them.

8. GROUNDS FOR RELIEF

- 8.1 The Respondents, having been placed on formal notice of a serious governance risk including explicit notification of personal statutory liability under Section 60 of the EEA, failed to take any reasonable steps to address it.
- 8.2 Their conduct is inconsistent with the duties imposed under the Companies Act and the EEA, and gives rise to grounds for relief in terms of Section 162.
- 8.3 Such conduct amounts to, inter alia:
 - 8.3.1 Gross negligence;

8.3.2 Wilful misconduct — particularly in circumstances where the statutory consequences of inaction were explicitly named in the notification the Respondents received on 9 December 2025; and

8.3.3 A serious dereliction of fiduciary responsibility.

9. COSTS

9.1 The Respondents' conduct in this matter — including the filing of a sworn affidavit attacking the Applicant's character, the active suppression of board-level governance escalations, and the complete failure to respond to formal statutory notifications — constitutes litigation conduct that warrants a punitive costs order.

9.2 The Applicant is a self-represented individual who has been forced to bring this application to protect the governance integrity of a JSE-listed company. The Respondents' institutional bad faith, which included instructing the Applicant to cease communicating with directors, has caused unnecessary litigation and expense.

9.3 The Applicant accordingly prays for a costs order on the attorney-and-client scale, de bonis propriis, against the First to Fifth Respondents personally, to ensure that the costs burden does not fall on the Company or its shareholders, but on the individual directors and officers whose conduct gave rise to this application.

10. CONCLUSION

10.1 This application is brought in good faith and is supported by documentary evidence generated by the Respondents' own systems, demonstrating: formal notice; the statutory Section 60 EEA deemed contravention; failure to act; and active suppression.

10.2 The Respondents' conduct warrants judicial intervention and the Section 60 deemed contravention — established by operation of statute on the documents before this Court — provides an independent and determinative basis for the delinquency orders sought.

I declare that the above facts are true and correct to the best of my knowledge and belief.

WILBUR WILLIAM MATTHEE
DEPONENT

I certify that the Deponent has acknowledged that the deponent knows and understands the contents of this affidavit, which was signed and sworn before me at _____ on this 20th day of June 2026.

COMMISSIONER OF OATHS

ANNEXURE “A”

Priority 1 Material Risk Report — 9 December 2025 (with 38 evidentiary attachments). Section 60 EEA personal liability warning appears at Section 4A of that Report under the heading “Legal and Regulatory Risks.”

END OF FOUNDING AFFIDAVIT